

(*Gerawan Farming, Inc., v. Lyons* (2000), 24 Cal. 4th 468, 515-516.) In addition, the court is limited in its consideration to the face of the pleadings or matters entitled to judicial notice. (Code Civ. Proc. § 438(d).)

III. Legal Analysis

A. Quiet Title

The elements of an action to quiet title are: 1) the claimant is the owner and in possession of the land and 2) the defendant claims an interest therein adverse to the plaintiff. (*South Shore Land Co. v. Petersen* (1964) 226 Cal.App.2d 725, 740.)

Plaintiffs allege that Rader cannot maintain a claim for quiet title because her only purported ownership of the easement is from her grandfather's estate. They assert that because this did not occur until 2013 – well after they took ownership in 2000 – Rader's claim based on the estate cannot be maintained.

However, the FACC clearly pleads alternative theories of ownership to the easement, including notice or by prescriptive easement.

Constructive notice of an adverse interest to property can be had in two ways. First, constructive notice arises by the proper recording of an instrument containing that property right. (*Vasquez v. LBS Financial Credit Union* (2020) 52 Cal.App.5th 97, 108.) That clearly did not happen in this case. It is also possible to have constructive notice of a potential defect to the title where the purchaser "has knowledge of circumstances which, upon reasonable inquiry, would lead to that particular fact." (*Ibid* [citations omitted].) That is, in certain circumstances, where the purchaser has knowledge of certain facts or circumstances that should warn them of the need to make further inquiries into whether there are any adverse claims to the property. (*Ibid*.)

Somewhat similarly, the "elements necessary to establish a prescriptive easement are well settled. The party claiming such an easement must show use of the property which has been open, notorious, continuous and adverse for an uninterrupted period of five years. [Citations.]" (*McLear-Gary v. Scott* (2018) 25 Cal.App.5th 145, 159.) "[A]n essential element necessary to the establishment of a prescriptive easement is visible, open and notorious use sufficient to impart actual or constructive notice of the use to the owner of the servient tenement. [Citation.]" (*Ibid*.)

Here, Rader alleges that her family had open and continuous use of the easement from 1974 until the Plaintiffs attempted to block access. (FACC ¶ 10.) Rader alleges that her grandfather openly and notoriously used the road and even had his name and address posted on the gate across the road – and that it was Plaintiffs' who removed that name and address. (*Id.* ¶ 18.) Rader alleges that in addition to herself, others used the road including guests and utility companies, which were open and obvious to the Plaintiffs. (*Id.* ¶ 19.)

Plaintiffs take issue with the fact that Rader does not specify that she was using the land for the necessary five years to establish a prescriptive easement. The Court disagrees. The FACC clearly alleges that the family has been using the access road for over fifty years. By Plaintiffs' own arguments, any written easement that the Rader family had was extinguished in 2000 when the Cuplers took title to the land. Nonetheless, Rader continued to use the access road openly and notoriously after that date.

Accordingly, the FACC alleges that Rader is the claimant of the land in interest by either constructive notice or prescriptive easement, and the Plaintiffs have claimed an interest adverse to her own. Thus, Rader has sufficiently alleged a cause of action for quiet title.

The MJOP as to the FACC's cause of action for quiet title is overruled.

B. Declaratory Relief /Injunctive Relief

Code of Civil Procedure section 1060 allows for the bringing of an action for declaratory judgment in order to ascertain the ongoing rights and duties of parties to an actual controversy. " 'One test of the right to institute proceedings for declaratory judgment is the necessity of present adjudication as a guide for plaintiff's future conduct in order to preserve his legal rights.'" (*Meyer v. Sprint Spectrum L.P.* (2009) 45 Cal.4th 634, 647.)

For the same reasons as stated above, Rader has sufficiently pled a cause of action for quiet title and can reasonably seek a judgment to ascertain the rights and duties of the parties because there is an actual controversy.

Injunctive relief is a remedy, not an individual cause of action. (*Allen v. City of Sacramento* (2015) 234 Cal.App.4th 41, 65.) Thus, before injunctive relief can be granted, a cause of action must exist. (*Ibid.*) Here, the Court has found that Rader has sufficiently pled a cause of action for quiet title. Accordingly, the request for injunctive relief is also proper.

The MJOP as to the causes of action for declaratory and injunctive relief are overruled.

C. Slander of Title

"Slander or disparagement of title occurs when a person, without a privilege to do so, publishes a false statement that disparages title to property and causes the owner thereof " 'some special pecuniary loss or damage.'" (*Sumner Hill Homewoners' Assn., Inc. v. Rio Mesa Holdings* (2012) 205 Cal.App.4th 999, 1030.) Where, as here, the alleged title is based on prescriptive rights, there can be no slander of title claim *until* the determination of title has been made by the Court. (*Id.* at 1028-1029.) Because there has been no determination as to Rader's claimed rights, she cannot maintain a cause of action for slander of title.